

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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ROBERT HOLDERMAN,
Plaintiffs,

-against-

THE CITY OF NEW YORK, Police Officer
Christopher McKenna, Shield No. 31940,
Police Officer Loren Verri, Shield No. 558,
Sergeant Valentin Khazin, Shield No. 2005,
Police Officer Mark Raile, Shield No. 8061,
Police Officer Melissa Depalma, Shield No.
10283, Sergeant Michael Borg, Shield No.
12277, Police Officer Michael Murphy, Shield
No. 10219, Sergeant David Feuer, Shield No.
1742, Police Officers JOHN DOE # 1 through 3
in their individual and official capacities as
employees of the City of New York,

Defendants.

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**FIRST AMENDED
COMPLAINT**

Jury Trial Demanded

15 CV 5547 (ILG)(LB)

Plaintiff, ROBERT HOLDERMAN, by his attorney, The Rameau
Law Firm, alleges the following, upon information and belief, for this
Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought
pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, the Fourth, Fifth,
and Fourteenth Amendments to the United States Constitution, and
the common law of the State of New York, against the defendants
mentioned above in their individual and official capacities, and against
the City of New York.

2. On August 4, 2014, November 18, 2014, and March 16, 2015, Defendants Christopher McKenna, Shield No. 31940, Loren Verri, Shield No. 558, Sergeant Valentin Khazin, Shield No. 2005, Police Officer Mark Raile, Shield No. 8061, Police Officer Melissa Depalma, Shield No. 10283, Sergeant Michael Borg, Shield No. 12277, Police Officer Michael Murphy, Shield No. 10219, Sergeant David Feuer, Shield No. 1742, JOHN DOE # 1 through 3 (collectively, the "Defendants") unlawfully arrested Plaintiff without any justification or due cause.

3. Plaintiff seeks compensatory and punitive damages and an award of attorneys' fees and costs pursuant to 42 U.S.C. § 1988.

4. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

5. This action has been commenced within one year and ninety days after the happening of events upon which the claims are based.

JURISDICTION

6. This Court has subject matter jurisdiction over the federal claims pursuant to 28 U.S.C. §§ 1331 and 1343. Plaintiff also asserts jurisdiction over the City of New York under 28 U.S.C. §§ 1331 and 1367. Plaintiff requests that this Court exercise pendent

jurisdiction over any state law claims arising out of the same common nucleus of operative facts as Plaintiff's federal claims.

VENUE

7. Under 28 U.S.C. § 1391 (b) and (c), venue is proper in the Eastern District of New York.

PARTIES

8. Plaintiff ROBERT HOLDERMAN ("Mr. Holderman") was at all material times a resident of the City of New York, New York State, and of proper age to commence this lawsuit.

9. Defendant CHRISTOPHER MCKENNA ("MCKENNA"), Shield No. 31940 was at all relevant times an officer employed by the New York City Department ("N.Y.P.D."), acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual official capacities.

10. Defendant MCKENNA at all relevant times herein either directly participated or failed to intervene in violation of plaintiff's civil rights.

11. Defendant LOREN VERRI ("VERY"), Shield No. 558 was at all relevant times an officer employed by the New York City Department ("N.Y.P.D."), acting under color of law, to wit, under color

of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual official capacities.

12. Defendant VERRI at all relevant times herein either directly participated or failed to intervene in violation of plaintiff's civil rights.

13. Defendant Sergeant VALENTIN KHAZIN ("KHAZIN"), Shield No. 2005 was at all relevant times an officer employed by the New York City Department ("N.Y.P.D."), acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual official capacities.

14. Defendant KHAZIN at all relevant times herein either directly participated or failed to intervene in violation of plaintiff's civil rights.

15. Defendant Police Officer MARK RAILE ("RAILE"), Shield No. 8061 was at all relevant times an officer employed by the New York City Department ("N.Y.P.D."), acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is

named here in his individual official capacities.

16. Defendant RAILE at all relevant times herein either directly participated or failed to intervene in violation of plaintiff's civil rights.

17. Defendant Police Officer MELISSA DEPALMA ("DEPALMA"), Shield No. 10283 was at all relevant times an officer employed by the New York City Department ("N.Y.P.D."), acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual official capacity.

18. Defendant DEPALMA at all relevant times herein either directly participated or failed to intervene in violation of plaintiff's civil rights.

19. Defendant Sergeant MICHAEL BORG ("BORG"), Shield No. 12277 was at all relevant times an officer employed by the New York City Department ("N.Y.P.D."), acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual official capacity.

20. Defendant BORG at all relevant times herein either

directly participated or failed to intervene in violation of plaintiff's civil rights.

21. Defendant Sergeant MICHAEL MURPHY ("MURPHY"), Shield No. 10219 was at all relevant times an officer employed by the New York City Department ("N.Y.P.D."), acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual official capacity.

22. Defendant MURPHY at all relevant times herein either directly participated or failed to intervene in violation of plaintiff's civil rights.

23. Defendant Sergeant DAVID FEUER ("FEUER") Shield No. 1742 was at all relevant times an officer employed by the New York City Department ("N.Y.P.D."), acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of his authority and employment. He is named here in his individual official capacity.

24. Defendant FEUER at all relevant times herein either directly participated or failed to intervene in violation of plaintiff's civil rights

25. Defendants JOHN DOE 1 through 3 were at all relevant

times officers employed by the N.Y.P.D., acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/ or the City of New York, and acting within the scope of their authority and employment. They are named here in their individual official capacities.

26. Defendant City of New York (hereinafter "The City") is, and was at all relevant times, a municipal corporation duly organized and existing pursuant to the laws, statutes and charters of the State of New York. The City operates the N.Y.P.D., a department or agency of defendant City responsible for the appointment, training, supervision, promotion and discipline of officers and supervisory officers, including the Defendants.

FACTUAL ALLEGATIONS

27. Plaintiff is an African-American male.

28. Plaintiff is a used car dealer with out-of-state dealer plates and has been the victim of several traffic stops where the officers did not have any reasonable suspicion to stop him.

Incident 1.

29. On August 4, 2014, at approximately 10:40 p.m., Plaintiff was driving in the area of Flatbush and Church Avenue, when defendant MCKENNA, MURPHY, and FEUER, and JOHN DOE#1 ("August Defendants"), stopped him.

30. The August Defendants stopped plaintiff without any reasonable suspicion.

31. Plaintiff produced his identification but was arrested nevertheless under the guise of committing a violation of the Vehicle and Traffic Laws (“VTL”).

32. Plaintiff committed no such violations.

33. Defendants also claimed Plaintiff had an outstanding warrant.

34. Plaintiff did not have a warrant out for him.

35. Plaintiff had been stopped on prior occasions and had never been told or brought into custody because of this alleged warrant.

36. Plaintiff was handcuffed and held in a public area in full view of the public for some time. Plaintiff was taken to jail and later to Kings County Criminal Court.

37. The VTL charges against him were resolved through an adjournment in contemplation of dismissal (“ACD”).

38. Because of the alleged warrant plaintiff was remanded. Plaintiff spent the night on Rikers Island.

39. On August 5, 2014, plaintiff was taken to the Bronx County Supreme Court, and was thereafter remanded.

40. Plaintiff was taken to Rikers Island where he remained incarcerated.

41. On August 6, 2014, plaintiff was again produced in the Supreme Court Bronx County. At that time, plaintiff again protested that he was not the subject of the bench warrant at issue. Plaintiff was released from custody that day after it was agreed that plaintiff should not have been taken in as a result of this warrant.

42. As a direct result of the aforementioned wrongful conduct of the defendants the plaintiff was caused to be remanded to the custody of the New York City Department of Corrections until he was released from custody by the court after at least three (3) days of incarceration.

Incident 2

43. On November 18, 2014, at approximately 11:30 p.m., Plaintiff was in his parked car in the area of Flatbush and Beverly Road, when defendants VERRI, KHAZIN, and JOHN DOE #2 ("November Defendants"), approached Plaintiff without justification or provocation and asked for his state ID. Plaintiff complied.

44. Thereafter, the November Defendants did not have any reasonable suspicion to stop plaintiff.

45. The November Defendants then falsely arrested plaintiff on the guise of VTL violations and on the guise of a warrant.

46. Plaintiff was handcuffed and held in a public area in full view of the public for some time. Plaintiff was then taken to the 70TH precinct and later to Kings County Central Booking.

47. At the precinct, the officers falsely informed employees of the Kings County District Attorney's Office that they observed plaintiff committing various crimes.

48. At no point did the officers observe plaintiff committing any crimes or offenses.

49. Plaintiff was forced to return to court numerous times to defend himself against these baseless charges.

50. All charges against plaintiff were false and were dismissed on or about March 5th, 2015.

Incident 3.

51. On March 16, 2015, at approximately 10:30 p.m., Plaintiff was in his parked car in the area of Flatbush Avenue, when defendant RAILE approached Plaintiff without reasonable suspicion, justification or provocation and asked for his state license and registration.

52. Plaintiff complied immediately and asked if he can go to a bank located nearby to make a deposit. Defendant allowed plaintiff to leave to make a deposit.

53. When Mr. Holderman came back from the bank, he saw Defendant DEPALMA, BORG, and JOHN DOE #3 come in a police wagon vehicle.

54. Police Officer MELISSA DEPALMA arrested plaintiff and took him to the 70th Precinct and later to Kings Central Bookings.

55. Police Officer MELISSA DEPALMA issued plaintiff a VTL

summons even though she did not observe plaintiff commit the alleged violation.

56. At the precinct, the officers false informed employees of the Kings County District Attorney's Office that they observed plaintiff committing a VTL violation.

57. Plaintiff was forced to return to court on numerous occasions.

58. This allegation was false and on or about September 16, 2015 all charges against plaintiff were dismissed and sealed just when the trial was set to commence.

FIRST CLAIM
42 U.S.C. § 1983

59. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

60. Defendants, by their conduct toward plaintiff alleged herein, violated plaintiff's rights guaranteed by 42 U.S.C. § 1983, the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

61. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM
Unlawful Stop and Search

62. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

63. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff on three separate occasions without reasonable suspicion.

64. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM
False Arrest

65. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

66. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM
State Law False Imprisonment and False Arrest

68. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

69. By their conduct, as described herein, the individual defendants are liable to plaintiff for falsely imprisoning and falsely arresting plaintiff.

70. On each occasion, Plaintiff was conscious of his confinement.

71. On each occasion, Plaintiff did not consent to his confinement.

72. On each occasion, Plaintiff's confinement was not otherwise privileged.

73. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

74. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FIFTH CLAIM
Malicious Prosecution

75. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

76. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff, under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

77. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

78. As a direct and proximate result of defendants' unlawful actions, plaintiff has suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

SIXTH CLAIM
State Law Malicious Prosecution

79. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

80. By their conduct, as described herein, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

81. Defendants maliciously commenced criminal proceeding against plaintiff, charging him with resisting arrest, menacing and disorderly conduct. Defendants falsely and without probable cause charged plaintiff with violations of the laws of the State of New York.

82. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

83. All charges were terminated in plaintiff's favor.

84. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SEVENTH CLAIM
State Law Assault and Battery

86. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

87. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

88. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

EIGHTH CLAIM
Denial Of Constitutional Right To Fair Trial

90. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

91. The individual defendants created false evidence against Plaintiff.

92. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

93. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

94. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CLAIM
Malicious Abuse Of Process

95. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

96. The individual defendants issued legal process to place Plaintiff under arrest.

97. The individual defendants arrested Plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up their assault of him.

98. The individual defendants acted with intent to do harm to Plaintiff without excuse or justification.

99. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CLAIM
Negligent Hiring/Training/Retention Of
Employment Services

100. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

101. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged in the three arrest, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

102. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

103. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

104. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

105. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CLAIM

Intentional Infliction of Emotional Distress

106. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

107. By reason of the foregoing, and by assaulting, battering, and using gratuitous, excessive, brutal, sadistic, and unconscionable force, failing to prevent other defendants from doing so, or causing an unlawful seizure and extended detention without due process, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each committed conduct so extreme and outrageous as to constitute the intentional infliction of emotional distress upon Plaintiff.

108. The intentional infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

109. Defendants, their officers, agents, servants, and employees were responsible for the intentional infliction of emotional distress upon Plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

110. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CLAIM
Negligent Infliction of Emotional Distress

111. Plaintiffs repeat and reallege each and every allegation as if fully set forth herein.

112. By reason of the foregoing, and by assaulting, battering, and using gratuitous, excessive, brutal, sadistic, and unconscionable force, failing to prevent other defendants from doing so, or causing an unlawful seizure and extended detention without due process, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent in committing conduct that inflicted emotional distress upon Plaintiff.

113. The negligent infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

114. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon Plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

115. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CLAIM
Failure To Intervene

116. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

117. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

118. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

119. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CLAIM
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120. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

121. This is not an isolated incident. The City of New York (the “City”), through policies, practices and customs, directly caused the constitutional violations suffered by plaintiff.

122. The City, through its police department, has had and still has hiring practices that it knows will lead to the hiring of police officers lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

123. The City, through its police department, has a *de facto* quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

124. The City, through its police department, has a custom and practice of stopping individuals with out-of-state license plates without the requisite reasonable suspicion.

125. The City, through, its police department, has a custom and practice of stopping individuals with dealer license plates without the requisite reasonable suspicion.

126. The City, through, its police department, charge individuals with out-of-state license plates, dealer license plates or both with false violations of the Vehicle and Traffic Law.

127. The City, at all relevant times, was aware that these individual defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

128. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

129. These policies, practices, and customs were the moving force behind plaintiff's injuries

PRAYER FOR
RELIEF

WHEREFORE, Plaintiff requests that this Court:

(a) Award compensatory damages against the defendants, jointly and severally;

(b) Award punitive damages against the individual defendants, jointly and severally;

(c) Award costs of this action to the plaintiff;

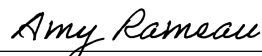
(d) Award reasonable attorneys' fees and costs to the plaintiff pursuant to 28 U.S.C. § 1988;

(e) Such other and further relief as this Court deem just and proper

JURY
DEMAND

Plaintiff hereby demands a jury trial.

DATED: February 18, 2015
Brooklyn, New York



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